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DURHAM v. FORD MOTOR COMPANY, ET AL.

CASE NO.: 25NWCV04544

HEARING: Thursday, June 25, 2026, at 9:30 AM

Defendant CENTRAL

FORD AUTOMOTIVE, INC's Motion for Judgment on the Pleadings to Plaintiff's

Complaint is GRANTED with 30 days

leave to amend.

Plaintiff to give notice.

Background

On December 24, 2025, Plaintiff EARTHA DURHAM ("Plaintiff")

filed this lemon law action against Defendants FORD MOTOR COMPANY; CENTRAL FORD AUTOMATIVE, INC. ("Defendant"); and DOES 1 through 10, inclusive.

Plaintiff's Complaint alleges

the following causes of action:

(1) Violation

of Song-Beverly Act, Breach of Express Warranty;

(2) Violation

of the Song-Beverly Act § 1793.2; and

(3) Negligent

Repair

On May 19, 2026, Defendant
filed the instant Judgment on the Pleadings arguing that Plaintiff's Negligent
Repair cause of action is barred by the economic loss rule.

Judgment
on the Pleadings

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motion for judgment on the pleadings performs the same function as a general
demurrer, and the rules governing demurrers apply. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.)

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demurrer is an objection to a pleading, the grounds for which are apparent from
either the face of the complaint or a matter of which the court may take
judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v.
Kirwan (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to
challenge the sufficiency of a pleading "by raising questions of law." (Postley
v. Harvey (1984) 153 Cal.App.3d 280, 286.)

Economic

Loss Rule

The economic loss rule provides that, "[i]n general, there
is no recovery in tort for negligently inflicted 'purely economic losses,'
meaning financial harm unaccompanied by physical or property damage." (Sheen
v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905,
922.)

However, there is a "recognized exception to the economic
loss rule for consumers who contract for certain kinds of professional
services." (Id., at p. 933.) "In that context, ...
a cause of action for negligence ensures that the consumer receives the
services the professional agreed to provide. In such settings,
professionals generally agree to provide 'careful efforts' in
rendering contracted for services, but 'most clients do not know enough to

protect themselves by inspecting the professional's work or by other independent means.” (Id. [citations omitted].) “Given this disparity, a claim for professional negligence can serve the important purpose of ensuring that professionals render the ‘careful efforts’ they have contracted to provide.” (Id. [citations omitted].) “

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In a negligent performance case, a “plaintiff will be entitled to recover economic loss damages without the need to allege and prove personal injury or property damage” based on a consideration of the following factors: “(1) the extent to which the transaction was intended to affect the plaintiff, (2) the foreseeability of harm to the plaintiff, (3) the degree of certainty that the plaintiff suffered injury, (4) the closeness of the connection between the defendant’s conduct and the injury suffered, (5) the moral blame attached to the defendant’s conduct, and (6) the policy of preventing future harm.” (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 782, 786.) “[T]he foreseeability of the economic harm to the plaintiff from the defendant’s negligent conduct [is] the critical factor.” (Id. at 782.) “

The Court finds North American Chemical inapposite. In Sheen, the Court found that “the Biakanja factors [applied in North American Chemical] are not applicable when, as here, the litigants are in contractual privity and the Plaintiff’s claim is not ‘independent of the contract arising from principles of tort law.’” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 942.)

While not explicitly stated, it is reasonable to infer that Defendant agreed to perform repairs on Subject Vehicle to conform with the express written warranty issued. Indeed, Plaintiff alleges “Plaintiff(s) delivered the Subject Vehicle to Defendant Central Ford for repair during the express warranty period for a warranted defect in the Subject Vehicle.” (Complaint ¶ 41.) Plaintiff’s negligent repair cause of action thus stems from a warranty contract. As pled, the Court is not persuaded that Plaintiff suffered damages separate from those incurred from a breach of warranty. Nor does Plaintiff specify what damages Defendants caused through negligent repair.

The Court does not find a failure to perform services extends beyond a breach of contract as Plaintiff alleges no facts that would give rise to an independent tort claim.

Subcomponent

The economic loss rule does not necessarily bar recovery in tort for damage that a defective product (e.g., a window) causes to other portions of a larger product (e.g., a house) into which the former has been incorporated.” (Jimenez v. Superior Court (2002) 29 Cal.4th 473, 483.) Plaintiff argues that here, Plaintiff’s allegations bring her claim within the exception delineated in Jimenez.

However, unlike Jimenez, Plaintiff fails to plead that Defendant damaged a component of the Subject Vehicle. The Court finds Jimenez inapplicable.

Defendant’s Judgment on the Pleadings is GRANTED.

Leave to Amend

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Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC (2015) 244 Cal.App.4th 118, 226.)¿¿¿

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Under the Court’s liberal policy of granting leave to amend, the Court grants Plaintiff 30 days leave to amend the Complaint to cure the defects set forth above.

Conclusion

Defendant’s Judgment on the Pleadings is GRANTED with 30 days leave to amend.